

the supreme magistrate the king ; but inferior judges are such, therefore inferior judges are as essentially judges as the supreme magistrate. The proposition is, Rom. xiii. 1, for that is the apostle's arguments ; whence we prove kings are to be obeyed, because they are powers from God. I prove the assumption : inferior magistrates are powers from God, Deut. i. 17 ; xix. 6, 7 ; Exod. xxii. 7 ; Jer. v. i. ; and the apostle saith, "The powers that be are ordained of God."

*Arg. 3.*—Christ testified that Pilate had power from God as a judge (say royalists) no less than Cæsar the emperor. (John xix. 11 ; 1 Pet. ii. 12.) We are commanded to obey the king and those that are sent by him, and that for the Lord's sake, and for conscience to God ; and (Rom. xiii. 5) we must be subject to all powers that are of God, not only for wrath, but for conscience.

*Arg. 4.* Those who are rebuked because they execute not just judgment, as well as the king, are supposed to be essentially judges, as well as the king ; but inferior judges are rebuked because of this, Jer. xxii. 15—17 ; Ezek. xlv. 9—12 ; Zeph. iii. 3 ; Amos v. 6, 7 ; Eccles. iii. 16 ; Mic. iii. 2—4 ; Jer. v. 1, 31.

*Arg. 5.*—He is the minister of God for good, and hath the sword not in vain, but to execute vengeance on the evil-doers, no less than the king. (Rom. xiii. 2—4.) He to whom agreeth, by an ordinance of God, the specific acts of a magistrate, is essentially a magistrate.

*Arg. 6.*—The resisting of the inferior magistrate in his lawful commandments is the resisting of God's ordinance, and a breach of the fifth commandment, as is disobedience to parents ; and not to give him tribute, and fear, and honour, is the same transgression, Rom. xiii. 1—7.

*Arg. 7.*—These styles, of gods, of heads of the people, of fathers, of physicians and healers of the sons of the Most High, of such as reign and decree by the wisdom of God, &c., that are given to kings, for the which royalists make kings only judges, and all inferior judges but deputed, and judges by participation, and at the second hand, or given to inferior judges. (Exod. xxii. 8, 9 ; John x. 35.) Those who are appointed judges under Moses (Deut. i. 16) are called, in Hebrew or Chaldee, (1 Kings viii. 1, 2 ; v. 2 ; Mic. iii. 1 ; Josh. xxiii. 2 ; Num. i. 16,) ראשי *rasce*, רישי *risi* fathers, (Acts vii. 2 ; Josh. xiv. 1 ; xix. 15 ; 1 Chron. viii. 28,)

healers, (Isa. iii. 7,) gods, and sons of the Most High. (Psal. lxxxii. 1, 2, 6, 7 ; Prov. viii. 16, 17.) I much doubt if kings can infuse godheads in their subjects. I conceive they have, from the God of gods, these gifts whereby they are enabled to be judges ; and that kings may appoint them judges, but can do no more : they are no less essentially judges than themselves.

*Arg. 8.*—If inferior judges be deputies of the king, not of God, and have all their authority from the king, then may the king limit the practice of these inferior judges. Say that an inferior judge hath condemned to death a paricide, and he be conveying him to the place of execution, the king cometh with a force to rescue him out of his hand ; if this inferior magistrate bear God's sword for the terror of ill-doers, and to execute God's vengeance on murderers, he cannot but resist the king in this, which I judge to be his office ; for the inferior judge is to take vengeance on ill-doers, and to use the co-active force of the sword, by virtue of his office, to take away this paricide. Now, if he be the deputy of the king, he is not to break the jaws of the wicked (Job xxix. 17) ; not to take vengeance on evil-doers (Rom. xiii. 4) ; nor to execute judgment on the wicked, Psal. cxlix. 9) ; nor to execute judgment for the fatherless (Deut. x. 18) ; except a mortal man's creator, the king, say Amen. Now, truly then, God, in all Israel, was to rebuke no inferior judge for perverting judgment,—as he doth, Exod. xxiii. 26 ; Mic. iii. 2—4 ; Zech. iii. 3 ; Num. xxv. 5 ; Deut. i. 16 ; for the king only is lord of the conscience of the inferior judge who is to give sentence, and execute sentence righteously, upon condition that the king, the only univocal and proper judge, first decree the same, as royalists teach.

Hear our Prelate (c. 4, p. 46).—How is it imaginable that kings can be said to judge in God's place, and not receive the power from God ? But kings judge in God's place. (Deut. i. 17 ; 2 Chron. xix. 6.) Let no man stumble (this is his *prolepsis*) at this, that Moses in the one place, and Jehoshaphat in the other, spake to subordinate judges under them. This weakeneth nowise our argument ; for it is a ruled case in law, *Quod quis facit per alium, facit per se*, all judgments of inferior judges are in the name, authority, and by the power of the supreme, and are but communicatively and derivatively from the sovereign power.